

****March 21, 2025****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in January 2025, an investigation into the operator Bucharest Down Town Hotel SRL and found a violation of the provisions of Article 12 paragraph (3), Article 13, and Article 15 of Regulation (EU) 2016/679. As such, the operator was sanctioned with an administrative fine in the amount of 4,975.00 RON (equivalent to 1,000 EURO).

The investigation was initiated following a complaint alleging a violation of the provisions of Regulation (EU) 2016/679.

The National Authority for the Supervision of Personal Data Processing found that the data subject requested to be informed of all personal data concerning them that is held by the operator, including a copy of the signed document and any audio-video recordings pertaining to them.

During the investigation, it was established that the operator did not provide evidence that a response was sent within the legal timeframe to the request for exercising the right of access of the data subject. It was also found that the operator sent a response to the petitioner as a result of actions taken by the National Authority for the Supervision of Personal Data Processing, without providing all the personal data they hold, including a copy of the signed document and any audio-video recordings related to the individual. Therefore, this situation constitutes a violation of the provisions of Article 12 paragraph (3), Article 13, and Article 15 of Regulation (EU) 2016/679.

Pursuant to Article 58 paragraph (2) letter c) of Regulation (EU) 2016/679, the following corrective measures were ordered for the operator:

- Compliance, in all cases, with the applicable provisions regarding the analysis and prompt resolution of requests for exercising the rights provided by Regulation (EU) 679/2016 and the communication of responses to data subjects within the legal deadlines;
- Ensuring complete information for all data subjects regarding all activities involving personal data processing, by providing all information required by Articles 12 and 13 of Regulation (EU) 2016/679.

****Legal and Communication Directorate****

****N.A.S.P.D.C.P.****